

IRELAND

In Ireland, the implementation and enforcement of the **EU Artificial Intelligence (AI) Act** involve multiple authorities designated to oversee various aspects of AI regulation, particularly concerning the protection of fundamental rights in high-risk AI applications.

The Department of Enterprise, Trade and Employment is leading the national implementation of the AI Act. All of them are:

[Ireland Appoints Nine National Authorities to Enforce EU AI Act – AI Ireland](#)

The Nine Designated Authorities

Minister Dara Calleary announced the designation of the following bodies:

- An Coimisiún Toghcháin (Electoral Commission)
- Coimisiún na Meán (Media Commission)
- Data Protection Commission (DPC)
- Environmental Protection Agency
- Financial Services and Pensions Ombudsman
- Irish Human Rights and Equality Commission
- The Ombudsman
- Ombudsman for Children
- Ombudsman for the Defence Forces

Each authority will have specific powers under the AI Act to oversee high-risk AI systems within their sectors, ensuring these technologies do not compromise fundamental rights.

Roles and Responsibilities

Data Protection Commission (DPC)

The DPC will play a central role in this framework. As a key authority under the EU's General Data Protection Regulation (GDPR), it will ensure that AI applications respect data privacy laws and protect against unauthorised data use. The DPC will scrutinise processes to ensure compliance with GDPR requirements on data minimisation, purpose limitation and user consent.

Media Commission (Coimisiún na Meán)

This body will address AI's influence on public discourse, particularly concerning the spread of misinformation by generative AI. With the rise of deepfakes and AI-driven content, the commission can enforce standards requiring clear labeling of AI-generated media, thereby protecting the public from deceptive practices.

Irish Human Rights and Equality Commission

This commission will evaluate AI applications intersecting with human rights. It will oversee AI-driven decisions in areas like employment and financial services to prevent discrimination, ensuring systems do not unfairly disadvantage individuals based on gender, ethnicity or socio-economic status.

Sector-Specific Authorities

- **Electoral Commission:** Will safeguard electoral processes from AI misuse, preserving democratic integrity.
- **Ombudsman for Children:** Will ensure that AI systems impacting children's welfare adhere to high standards, offering additional protections in educational and healthcare contexts.

A Significant Step Forward

Mark Kelly, founder of AI Ireland, welcomed the government's initiative:

"This move is a significant milestone for AI development in Ireland. By proactively setting up a robust governance framework, we're ensuring that innovation thrives alongside the protection of individual rights. It's encouraging to see such a comprehensive approach that involves multiple sectors and addresses the multifaceted challenges posed by AI technologies."

[gov.ie - Ministers welcome adoption of EU Artificial Intelligence \(AI\) Act](https://www.gov.ie/en/news/2024/05/ministers-welcome-adoption-of-eu-artificial-intelligence-ai-act/)

Penalties

Prohibited AI Systems

- **Violation:** Use or deployment of AI systems that are explicitly banned (e.g., social scoring by governments, real-time biometric surveillance without safeguards).

- **Penalty:** Up to **€30 million** or **6% of the company's total worldwide annual turnover**, whichever is higher.

. Non-Compliance with High-Risk AI Obligations

- **Violation:** Failure to comply with requirements for high-risk AI systems (e.g., data governance, transparency, risk management, human oversight).
- **Penalty:** Up to **€20 million** or **4% of the company's total worldwide annual turnover**, whichever is higher.

c. False or Misleading Information

- **Violation:** Providing false or incomplete information to regulators or failing to cooperate with supervisory authorities during inspections or audits.
 - **Penalty:** Up to **€10 million** or **2% of the company's total worldwide annual turnover**, whichever is higher.
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d. Limited or Minor Violations

- **Violation:** Breaches of obligations related to transparency or limited-risk AI systems (e.g., failure to inform users they are interacting with AI).
 - **Penalty:** Lower fines, typically set at a proportionate level by national authorities.
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2. Corrective Measures

In addition to financial penalties, enforcement authorities may impose:

- **Market Withdrawal:** Banning non-compliant AI systems from being sold or deployed in the EU.
- **System Recall:** Mandatory recall of products or services that include the offending AI.
- **Operational Suspension:** Temporary suspension of an AI system until compliance is achieved.
- **Remedial Measures:** Orders to bring the AI system into compliance within a specified timeframe.

<https://digital-strategy.ec.europa.eu/en/factpages/ai-act>

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Based on the European Parliament's adopted position, using prohibited AI practices outlined in Article 5 can result in fines of up to €40 million, or 7% of worldwide annual

turnover – whichever is higher. Not complying with the data governance requirements (under Article 10) and the requirements for transparency and provision of information (under Articles 13) can lead to fines up to €20 million, or 4% of worldwide turnover if that is higher. Non-compliance with any other requirements or obligations can result in fines of up to €10 million or 2% of worldwide turnover – again, whichever is higher. Fines are tiered depending on the provision violated, with prohibited practices receiving the highest penalties and other violations receiving lower maximum fines.

[EU AI Act Compliance Checker | EU Artificial Intelligence Act](#)

The European AI Office supports the development and use of trustworthy AI, while protecting against AI risks. The AI Office was [established within the European Commission](#) as the centre of AI expertise and forms the foundation for a single European AI governance system.

The EU aims to ensure that AI is safe and trustworthy. For this purpose, the [AI Act](#) is the first-ever comprehensive legal framework on AI worldwide, guaranteeing the health, safety and fundamental rights of people, and providing legal certainty to businesses across the 27 Member States.

The AI Office is uniquely equipped to support the [EU's approach to AI](#). It plays a key role in implementing the AI Act by supporting the governance bodies in Member States in their tasks. It enforces the rules for general-purpose AI models. This is underpinned by the powers given to the Commission by the AI Act, including the ability to conduct evaluations of general-purpose AI models, request information and measures from model providers, and apply sanctions. The AI Office also promotes an innovative ecosystem of trustworthy AI, to reap the societal and economic benefits. It ensures a strategic, coherent and effective European approach on AI at the international level, becoming a global reference point.

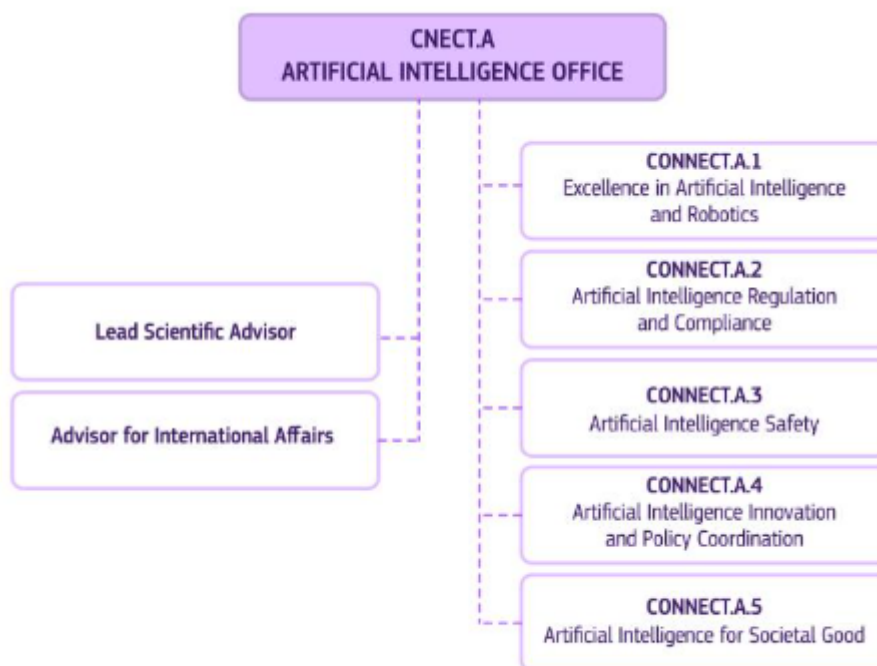
For well-informed decision-making, the AI Office collaborates with Member States and the wider expert community through dedicated fora and expert groups. These combine knowledge from the scientific community, industry, think tanks, civil society, and the open-source ecosystem, ensuring that their views and expertise are taken into account. Grounded in comprehensive insights of the AI ecosystem, including advances in capabilities, deployment and other trends, the AI Office fosters a thorough understanding of potential benefits and risks.

[European AI Office | Shaping Europe's digital future](#)

The Structure of the AI Office

The organisational set-up of the European AI Office consists of 5 units and 2 advisors, reflecting its mandate. These include:

- The “Excellence in AI and Robotics” unit
- The “Regulation and Compliance” unit
- The “AI Safety” unit
- The “AI Innovation and Policy Coordination” unit
- The “AI for Societal Good” unit
- The Lead Scientific Advisor
- The Advisor for International Affairs



The increasing use of AI in all sectors will be regulated more and more in the future. The AI Act is the centrepiece of AI regulation at EU level. The foreseeable publication of the regulation poses far-reaching challenges for regulated organizations in and outside of Europe. The requirements are complex, but can be implemented in an innovation-friendly way with the right approach and early preparations. In our PwC Artificial Intelligence Governance Introduction Framework, we combine technical expertise, legal knowledge and product compliance experience with the specific requirements of the new AI Act to help our clients build holistic AI governance systems.



Source: PwC "European AI regulation and its implementation"

Ethical principles like fairness must be translated into processes and tasks to make them actionable.

Even though standards for AI are mostly non-binding, several governance frameworks have been published to guide the development and use of AI. Some of the most prominent frameworks include:

- [The IEEE Global Initiative on Ethics of Autonomous and Intelligent Systems](#)
- [The European Union's Ethics Guidelines for Trustworthy AI](#) as base for the EU AI Act
- [The Montreal Declaration for Responsible AI](#)
- [The AIGA AI Governance Framework](#)
- [NIST Artificial Intelligence Risk Management Framework](#)